

588

1 of 2

Vol. 588 (Pp. 1–357; 901–902)

UNITED STATES REPORTS

Part 1

---

*PRELIMINARY PRINT*

---

VOLUME 588 U. S. - PART 1

PAGES 1–357; 901–902

---

OFFICIAL REPORTS  
OF  
THE SUPREME COURT

JUNE 20 THROUGH JUNE 21, 2019

---

CHRISTINE LUCHOK FALLON

REPORTER OF DECISIONS



NOTICE: This preliminary print is subject to formal revision before the bound volume is published. Users are requested to notify the Reporter of Decisions, Supreme Court of the United States, Washington, D.C. 20543, [pio@supremecourt.gov](mailto:pio@supremecourt.gov), of any typographical or other formal errors.

---

For sale by the Superintendent of Documents, U. S. Government Publishing Office  
Washington, D.C. 20402

**JUSTICES**  
OF THE  
**SUPREME COURT**  
DURING THE TIME OF THESE REPORTS

---

JOHN G. ROBERTS, JR., CHIEF JUSTICE.  
CLARENCE THOMAS, ASSOCIATE JUSTICE.  
RUTH BADER GINSBURG, ASSOCIATE JUSTICE.  
STEPHEN BREYER, ASSOCIATE JUSTICE.  
SAMUEL A. ALITO, JR., ASSOCIATE JUSTICE.  
SONIA SOTOMAYOR, ASSOCIATE JUSTICE.  
ELENA KAGAN, ASSOCIATE JUSTICE.  
NEIL M. GORSUCH, ASSOCIATE JUSTICE.  
BRETT M. KAVANAUGH, ASSOCIATE JUSTICE.

RETIRED

JOHN PAUL STEVENS, ASSOCIATE JUSTICE.  
SANDRA DAY O'CONNOR, ASSOCIATE JUSTICE.  
ANTHONY M. KENNEDY, ASSOCIATE JUSTICE.  
DAVID H. SOUTER, ASSOCIATE JUSTICE.

---

OFFICERS OF THE COURT

WILLIAM P. BARR, ATTORNEY GENERAL.  
NOEL J. FRANCISCO, SOLICITOR GENERAL.  
SCOTT S. HARRIS, CLERK.  
CHRISTINE LUCHOK FALLON, REPORTER OF  
DECISIONS.  
PAMELA TALKIN, MARSHAL.  
LINDA S. MASLOW, LIBRARIAN.

## SUPREME COURT OF THE UNITED STATES

### ALLOTMENT OF JUSTICES

*It is ordered* that the following allotment be made of the Chief Justice and Associate Justices of this Court among the circuits, pursuant to Title 28, United States Code, Section 42, and that such allotment be entered of record, effective October 19, 2018, viz.:

For the District of Columbia Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the First Circuit, STEPHEN BREYER, Associate Justice.

For the Second Circuit, RUTH BADER GINSBURG, Associate Justice.

For the Third Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Fourth Circuit, JOHN G. ROBERTS, JR., Chief Justice.

For the Fifth Circuit, SAMUEL A. ALITO, JR., Associate Justice.

For the Sixth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Seventh Circuit, BRETT M. KAVANAUGH, Associate Justice.

For the Eighth Circuit, NEIL M. GORSUCH, Associate Justice.

For the Ninth Circuit, ELENA KAGAN, Associate Justice.

For the Tenth Circuit, SONIA SOTOMAYOR, Associate Justice.

For the Eleventh Circuit, CLARENCE THOMAS, Associate Justice.

For the Federal Circuit, JOHN G. ROBERTS, JR., Chief Justice.

October 19, 2018.

---

(For next previous allotment, see 586 U. S., Pt. 1, p. III.)

## INDEX

(Vol. 588 U. S., Part 1)

---

**ADMINISTRATIVE ORDERS REVIEW ACT.** See **Hobbs Act.**

**BENEFICIARIES.** See **State Taxation of Income.**

**BURDEN OF PROOF.** See **Criminal Law.**

**CITY ORDINANCES.** See **Constitutional Law.**

**CIVIL RIGHTS ACT OF 1871.** See **Constitutional Law; Statutes of Limitations.**

**CLEAR-ERROR STANDARD.** See **Peremptory Challenges.**

**CONSTITUTIONAL LAW.** See also **Sex Offender Registration and Notification Act; State Taxation of Income.**

*Eminent domain—Ordinance affecting access to cemeteries—Violation of Takings Clause—Question of timing.*—Government violates Takings Clause when it takes property without compensation, and property owner may bring Fifth Amendment claim under 42 U. S. C. § 1983 at that time; state-litigation requirement of Williamson County Regional Planning Comm’n v. Hamilton Bank of Johnson City, 473 U. S. 172, is overruled. Knick v. Township of Scott, p. 180.

*Establishment of religion—Religious symbols—Government funding—War memorial.*—Bladensburg Cross does not violate Establishment Clause. American Legion v. American Humanist Assn., p. 29.

**CRIMINAL LAW.** See also **Peremptory Challenges; Sex Offender Registration and Notification Act; Statutes of Limitations.**

*Violation of the firearm possession statute—Burden of proof—Presumption favoring finding of scienter.*—In prosecution under 18 U. S. C. § 922(g) and § 924(a)(2), Government must prove both that defendant knew he possessed a firearm and that he knew he belonged to relevant category of persons barred from possessing a firearm. Rehaif v. United States, p. 225.

**DUE PROCESS.** See **State Taxation of Income.**

**EMINENT DOMAIN.** See **Constitutional Law.**

**ESTABLISHMENT OF RELIGION.** See **Constitutional Law.**

**EVIDENCE.** See **Statutes of Limitations.**

**FIFTH AMENDMENT.** See **Constitutional Law.**

**FIREARM POSSESSION.** See **Criminal Law.**

**FIRST AMENDMENT.** See **Constitutional Law.**

**HOBBS ACT.**

*Agency issued order—Legislative or interpretative rule—Judicial review.*—Extent to which a 2006 FCC order interpreting term “unsolicited advertisement” binds lower courts may depend on resolution of two preliminary questions that Fourth Circuit should address in first instance: (1) whether order is equivalent of a legislative rule, which has force and effect of law, or an interpretative rule, which does not; and (2) whether petitioners had a “prior” and “adequate” opportunity to seek judicial review of order. *PDR Network, LLC v. Carlton Harris Chiropractic, Inc.*, p. 1.

**JUDICIAL REVIEW OF ADMINISTRATIVE DECISIONS.** See **Hobbs Act.**

**JURY SELECTION.** See **Peremptory Challenges.**

**LEGISLATIVE POWERS.** See **Sex Offender Registration and Notification Act.**

**MEMORIALS AND MONUMENTS.** See **Constitutional Law.**

**NONDELEGATION DOCTRINE.** See **Sex Offender Registration and Notification Act.**

**PEREMPTORY CHALLENGES.**

*Peremptory strike of jurors—Prima facie showing of discrimination.*—Trial court at Flowers’ sixth murder trial committed clear error in concluding that State’s peremptory strike of particular black prospective juror was not motivated in substantial part by discriminatory intent. *Flowers v. Mississippi*, p. 284.

**REGULATORY TAKING.** See **Constitutional Law.**

**RELIGIOUS SYMBOLS.** See **Constitutional Law.**

**SCIENTER.** See **Criminal Law.**

**SEX OFFENDER REGISTRATION AND NOTIFICATION ACT.**

*Registration of sex offenders—Applicability to pre-Act offenders.*—Second Circuit’s judgment that 34 U. S. C. §20913(d)—which requires Attorney General to apply Sex Offender Registration and Notification Act’s registration requirements as soon as feasible to offenders convicted before

**SEX OFFENDER REGISTRATION AND NOTIFICATION ACT—**  
Continued.

statute's enactment—is not an unconstitutional delegation of legislative authority is affirmed. *Gundy v. United States*, p. 128.

**STATE TAXATION OF INCOME.**

*State taxation of trust income—Distribution to beneficiaries.*—Presence of in-state beneficiaries alone does not empower a State to tax trust income that has not been distributed to beneficiaries where beneficiaries have no right to demand that income and are uncertain to receive it. *North Carolina Dept. of Revenue v. Kimberley Rice Kaestner 1992 Family Trust*, p. 262.

**STATUTES OF LIMITATIONS.**

*Running of limitations period—Timeliness of claim.*—The statute of limitations for McDonough's 42 U.S.C. § 1983 fabricated-evidence claim against his prosecutor began to run when criminal proceedings against him terminated in his favor—that is, when he was acquitted at end of his second trial. *McDonough v. Smith*, p. 109.

**TAKING OF PROPERTY.** See **Constitutional Law.**

**TELEPHONE CONSUMER PROTECTION ACT OF 1991.** See **Hobbs Act.**

**TRUSTS.** See **State Taxation of Income.**

**UNSOLICITED ADVERTISEMENTS.** See **Hobbs Act.**

**WORDS AND PHRASES.**

“[U]nsolicited advertisement.” Telephone Consumer Protection Act of 1991, 47 U.S.C. § 227(b)(1)(C). *PDR Network, LLC v. Carlton Harris Chiropractic, Inc.*, p. 1.

## TABLE OF CASES REPORTED

(Vol. 588 U. S., Part 1)

---

### NOTES:

This volume provides the permanent United States Reports citation for all reported cases. Cases reported before page 901 are those decided with opinions of the Court or decisions *per curiam*. Cases reported on page 901 *et seq.* are those in which orders were entered. Although the Table of Cases Reported does not list orders denying a petition for writ of certiorari, such orders are included chronologically in this volume.

The syllabus in a case constitutes no part of the opinion of the Court but has been prepared by the Reporter of Decisions for the convenience of the reader. See *United States v. Detroit Timber & Lumber Co.*, 200 U. S. 321, 337 (1906).

A list of counsel who argued or filed briefs in a reported case, and who were members of the Court's Bar at the time the case was argued, are included in the United States Reports along with the Court's opinion in the case.

---

|                                                                                                                               | Page |
|-------------------------------------------------------------------------------------------------------------------------------|------|
| American Humanist Assn.; American Legion <i>v.</i> . . . . .                                                                  | 29   |
| American Legion <i>v.</i> American Humanist Assn. . . . .                                                                     | 29   |
| Aurelius Investment; Financial Oversight and Mgmt. Bd. for P. R. <i>v.</i>                                                    | 901  |
| Aurelius Investment; Official Comm. of Unsecured Creditors <i>v.</i>                                                          | 901  |
| Aurelius Investment <i>v.</i> Puerto Rico . . . . .                                                                           | 901  |
| Aurelius Investment; United States <i>v.</i> . . . .                                                                          | 901  |
| Carlton & Harris Chiropractic, Inc.; PDR Network, LLC <i>v.</i> . . . .                                                       | 1    |
| Commonwealth. See name of Commonwealth.                                                                                       |      |
| Financial Oversight & Mgmt. Bd. for P. R. <i>v.</i> Aurelius Investment                                                       | 901  |
| Financial Oversight & Mgmt. Bd. for P. R.; Unión de Trabajadores<br>de la Industria Eléctrica y Riego, Inc. <i>v.</i> . . . . | 901  |
| Flowers <i>v.</i> Mississippi . . . . .                                                                                       | 284  |
| Gundy <i>v.</i> United States . . . . .                                                                                       | 128  |
| Kimberley Rice Kaestner Fam. Tr.; North Carolina Dept. of Rev. <i>v.</i>                                                      | 262  |
| Knick <i>v.</i> Scott Township . . . . .                                                                                      | 180  |
| McDonough <i>v.</i> Smith . . . . .                                                                                           | 109  |
| Mississippi; Flowers <i>v.</i> . . . .                                                                                        | 284  |
| North Carolina Dept. of Rev. <i>v.</i> Kimberley Rice Kaestner Fam. Tr.                                                       | 262  |

|                                                                         |      |
|-------------------------------------------------------------------------|------|
|                                                                         | Page |
| Official Comm. of Unsecured Creditors <i>v.</i> Aurelius Investment ..  | 901  |
| PDR Network, LLC <i>v.</i> Carlton & Harris Chiropractic, Inc. ....     | 1    |
| Puerto Rico; Aurelius Investment <i>v.</i> ....                         | 901  |
| Rehaif <i>v.</i> United States .....                                    | 225  |
| Scott Township; Knick <i>v.</i> .....                                   | 180  |
| Smith; McDonough <i>v.</i> .....                                        | 109  |
| Territory. See name of Territory.                                       |      |
| Union de Trabajadores de la Industria Electrica y Riego, Inc. <i>v.</i> |      |
| Financial Oversight & Mgmt. Bd. for P. R. ....                          | 901  |
| United. For labor union. See name of trade.                             |      |



**CASES ADJUDGED**  
IN THE  
**SUPREME COURT OF THE UNITED STATES**  
AT  
OCTOBER TERM, 2018

---

PDR NETWORK, LLC, ET AL. *v.* CARLTON & HARRIS  
CHIROPRACTIC, INC.

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR  
THE FOURTH CIRCUIT

No. 17–1705. Argued March 25, 2019—Decided June 20, 2019

Petitioners (collectively PDR) produce the Physicians’ Desk Reference, which compiles information about the uses and side effects of various prescription drugs. PDR sent healthcare providers faxes stating that they could reserve a free copy of a new e-book version of the Reference on PDR’s website. Respondent Carlton & Harris Chiropractic, a fax recipient, brought a putative class action in Federal District Court, claiming that PDR’s fax was an “unsolicited advertisement” prohibited by the Telephone Consumer Protection Act of 1991 (Telephone Act). 47 U. S. C. § 227(b)(1)(C). The District Court dismissed the case, concluding that PDR’s fax was not an “unsolicited advertisement” under the Telephone Act. The Fourth Circuit vacated the District Court’s judgment. Based on the Administrative Orders Review Act (Hobbs Act), which provides that courts of appeals have “exclusive jurisdiction to enjoin, set aside, suspend (in whole or in part), or to determine the validity of” certain “final orders of the Federal Communication Commission,” 28 U. S. C. § 2342(1), the Court of Appeals held that the District Court was required to adopt the interpretation of “unsolicited advertisement” set forth in a 2006 FCC order. Because the Court of Appeals found that the 2006 order interpreted the term “unsolicited advertisement” to “include any offer of a free good or service,” the Court of

Appeals concluded that the facts as alleged demonstrated that PDR's fax was an unsolicited advertisement. 883 F.3d 459, 467.

*Held:* The extent to which the 2006 FCC order binds the lower courts may depend on the resolution of two preliminary sets of questions that were not aired before the Court of Appeals. First, is the order the equivalent of a “legislative rule,” which is “‘issued by an agency pursuant to statutory authority’” and has the “‘force and effect of law’”? *Chrysler Corp. v. Brown*, 441 U.S. 281, 302–303. Or is it the equivalent of an “interpretive rul[e],” which simply “‘advis[es] the public of the agency’s construction of the statutes and rules which it administers’” and lacks “‘the force and effect of law’”? *Perez v. Mortgage Bankers Assn.*, 575 U.S. 92, 97. If the order is the equivalent of an “interpretive rule,” it may not be binding on a district court, and a district court therefore may not be required to adhere to it. Second, did PDR have a “prior” and “adequate” opportunity to seek judicial review of the order? 5 U.S.C. § 703. If the Hobbs Act’s exclusive-review provision, which requires certain challenges to FCC orders to be brought in a court of appeals “within 60 days after” the entry of the order in question, 28 U.S.C. § 2344, did not afford PDR a “prior” and “adequate” opportunity for judicial review, it may be that the Administrative Procedure Act permits PDR to challenge the order’s validity in this enforcement proceeding. The judgment of the Court of Appeals is vacated, and the case is remanded for that court to consider these preliminary issues, as well as any other related issues that may arise in the course of resolving this case. Pp. 6–8.

883 F.3d 459, vacated and remanded.

BREYER, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, SOTOMAYOR, and KAGAN, JJ., joined. THOMAS, J., filed an opinion concurring in the judgment, in which GORSUCH, J., joined, *post*, p. 8. KAVANAUGH, J., filed an opinion concurring in the judgment, in which THOMAS, ALITO, and GORSUCH, JJ., joined, *post*, p. 10.

*Carter G. Phillips* argued the cause for petitioners. With him on the briefs were *Kwaku A. Akowuah*, *Jeffrey N. Rosenthal*, and *Ana Tagvoryan*.

*Glenn L. Hara* argued the cause for respondent. With him on the brief was *D. Christopher Hedges*.

*Rachel P. Kovner* argued the cause for the United States as *amicus curiae* urging affirmance. With her on the brief were *Solicitor General Francisco*, *Assistant Attorney Gen-*

## Opinion of the Court

*eral Hunt, Deputy Solicitor General Stewart, Mark B. Stern, Michael S. Raab, Thomas M. Johnson, Jr., Jacob M. Lewis, and Scott M. Noveck.\**

JUSTICE BREYER delivered the opinion of the Court.

This case concerns two federal statutes, the Telephone Consumer Protection Act of 1991 (Telephone Act) and the Administrative Orders Review Act (Hobbs Act). The first statute generally makes it unlawful for any person to send an “unsolicited advertisement” by fax. 105 Stat. 2396, 47 U. S. C. § 227(b)(1)(C). The second statute provides that the federal courts of appeals have “exclusive jurisdiction to enjoin, set aside, suspend (in whole or in part), or to determine the validity of” certain “final orders of the Federal Communication Commission.” 28 U. S. C. § 2342(1).

In 2006, the FCC issued an order stating that the term “unsolicited advertisement” in the Telephone Act includes certain faxes that “promote goods or services even at no cost,” including “free magazine subscriptions” and “catalogs.” 21 FCC Rcd. 3787, 3814. The question here is whether the Hobbs Act’s vesting of “exclusive jurisdiction” in the courts of appeals to “enjoin, set aside, suspend,” or “determine the validity” of FCC “final orders” means that a

---

\*Briefs of *amici curiae* urging reversal were filed for the State of Oklahoma et al. by *Mike Hunter*, Attorney General of Oklahoma, *Mithun Mansinghani*, Solicitor General, and *Michael K. Velchik*, Assistant Solicitor General, and by the Attorneys General for their respective States as follows: *Curtis T. Hill, Jr.*, of Indiana, *Jeff Landry* of Louisiana, *Doug Peterson* of Nebraska, *Ken Paxton* of Texas, and *Patrick Morrissey* of West Virginia; for State and Local Government Associations by *Ashley E. Johnson*, *Bradley G. Hubbard*, and *Lisa E. Soronen*; and for Aditya Bamzai by *Mr. Bamzai, pro se*.

Briefs of *amici curiae* urging affirmance were filed for the American Bankers Association et al. by *Charles H. Kennedy* and *Thomas Pinder*; and for the Electronic Privacy Information Center by *Marc Rotenberg* and *Alan Butler*.

*Megan L. Brown*, *Bert W. Rein*, and *Daryl Joseffer* filed a brief for the U. S. Chamber of Commerce as *amicus curiae*.

district court must adopt, and consequently follow, the FCC's order interpreting the term "unsolicited advertisement" as including certain faxes that promote "free" goods.

We have found it difficult to answer this question, for the answer may depend upon the resolution of two preliminary issues. We therefore vacate the judgment of the Court of Appeals and remand this case so that the Court of Appeals can consider these preliminary issues.

## I

Petitioners (PDR Network, PDR Distribution, and PDR Equity, collectively referred to here as PDR) produce the Physicians' Desk Reference, a publication that compiles information about the uses and side effects of various prescription drugs. PDR makes money by charging pharmaceutical companies that wish to include their drugs in the Reference, and it distributes the Reference to healthcare providers for free. In 2013, PDR announced that it would publish a new e-book version of the Reference. It advertised the e-book to healthcare providers by sending faxes stating that providers could reserve a free copy on PDR's website.

One of the fax recipients was respondent Carlton & Harris Chiropractic, a healthcare practice in West Virginia. It brought this putative class action against PDR in Federal District Court, claiming that PDR's fax violated the Telephone Act. Carlton & Harris sought statutory damages on behalf of itself and other members of the class.

According to Carlton & Harris, PDR's fax was an "unsolicited advertisement" prohibited by the Telephone Act. 47 U.S.C. § 227(b)(1)(C). The Act defines "unsolicited advertisement" as "any material advertising the commercial availability or quality of any property, goods, or services which is transmitted to any person without that person's prior express invitation or permission." § 227(a)(5). This provision says nothing about goods offered for free, but it does give the FCC authority to "prescribe regulations to implement"

## Opinion of the Court

the statute. § 227(b)(2). And, as we have said, the FCC’s 2006 order provides that fax messages that

“promote goods or services even at no cost, such as free magazine subscriptions, catalogs, or free consultations or seminars, are unsolicited advertisements under the [Telephone Act’s] definition. . . . ‘[F]ree’ publications are often part of an overall marketing campaign to sell property, goods, or services.” 21 FCC Rcd., at 3814.

The order also indicates, however, that faxes “that contain only information, such as industry news articles, legislative updates, or employee benefit information, would not be prohibited.” *Ibid.* The order then sets forth “factors” the FCC “will consider” when determining whether “an informational communication” that contains advertising material is an “unsolicited advertisement.” *Id.*, at 3814, n. 187.

The District Court found in PDR’s favor and dismissed the case. It concluded that PDR’s fax was not an “unsolicited advertisement” under the Telephone Act. 2016 WL 5799301 (SD W. Va., Sept. 30, 2016). The court did recognize that the FCC’s order might be read to indicate the contrary. *Id.*, at \*3. And it also recognized that the Hobbs Act gives appellate courts, not district courts, “exclusive jurisdiction” to “determine the validity of” certain FCC “final orders.” 28 U.S.C. § 2342(1). Nonetheless, the District Court concluded that neither party had challenged the order’s validity. 2016 WL 5799301, \*3. And it held that even if the order is presumed valid, a district court is not bound to follow the FCC interpretation announced in the order. *Id.*, at \*4. In any event, the District Court also noted that a “careful reading” of the order showed that PDR’s fax was not an “unsolicited advertisement” even under the FCC’s interpretation of that term. *Ibid.*

Carlton & Harris appealed to the Fourth Circuit, which vacated the District Court’s judgment. 883 F.3d 459 (2018). The Court of Appeals held that “the jurisdictional command”

of the Hobbs Act—that is, the word “exclusive”—“requires a district court to apply FCC interpretations” of the Telephone Act. *Id.*, at 466. Thus, the District Court should have adopted the interpretation of “unsolicited advertisement” set forth in the 2006 order. *Ibid.* And because the order interpreted the term “advertisement” to “include any offer of a free good or service,” *id.*, at 467, the facts as alleged demonstrated that PDR’s fax was an unsolicited advertisement.

PDR filed a petition for certiorari. We granted certiorari to consider “[w]hether the Hobbs Act required the District Court in this case to accept the FCC’s legal interpretation of the Telephone Consumer Protection Act.” 586 U. S. 996 (2018).

## II

The Hobbs Act says that an appropriate court of appeals has “exclusive jurisdiction to enjoin, set aside, suspend (in whole or in part), or to determine the validity of . . . final orders of the Federal Communication Commission made reviewable by section 402(a) of title 47.” 28 U. S. C. § 2342(1); see 47 U. S. C. § 402(a) (making reviewable certain “orde[rs] of the Commission under” the Communications Act, of which the Telephone Act is part). It further provides that “[a]ny party aggrieved” may bring such a challenge in the court of appeals “within 60 days after” the entry of the FCC order in question. 28 U. S. C. § 2344.

Here, we are asked to decide whether the Hobbs Act’s commitment of “exclusive jurisdiction” to the courts of appeals requires a district court in a private enforcement suit like this one to follow the FCC’s 2006 order interpreting the Telephone Act. The parties in this case did not dispute below that the order is a “final order” that falls within the scope of the Hobbs Act. 883 F. 3d, at 464, n. 1. And we assume without deciding that the order is such a “final order.” Even so, the extent to which the order binds the lower courts may depend on the resolution of two prelimi-

## Opinion of the Court

nary sets of questions that were not aired before the Court of Appeals.

*First*, what is the legal nature of the 2006 FCC order? In particular, is it the equivalent of a “legislative rule,” which is “‘issued by an agency pursuant to statutory authority’” and has the “‘force and effect of law’”? *Chrysler Corp. v. Brown*, 441 U. S. 281, 302–303 (1979) (quoting *Batterton v. Francis*, 432 U. S. 416, 425, n. 9 (1977)). Or is it instead the equivalent of an “interpretive rul[e],” which simply “‘advis[es] the public of the agency’s construction of the statutes and rules which it administers’” and lacks “‘the force and effect of law’”? *Perez v. Mortgage Bankers Assn.*, 575 U. S. 92, 97 (2015) (quoting *Shalala v. Guernsey Memorial Hospital*, 514 U. S. 87, 99 (1995)).

If the relevant portion of the 2006 order is the equivalent of an “interpretive rule,” it may not be binding on a district court, and a district court therefore may not be required to adhere to it. That may be so regardless of whether a court of appeals could have “determin[ed]” during the 60-day review period that the order is “valid” and consequently could have decided not to “enjoin, set aside, [or] suspend” it. 28 U. S. C. § 2342. And that may be so no matter what degree of weight the district court ultimately gives the FCC’s interpretation of the statute under *Chevron U. S. A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U. S. 837 (1984). We say “may” because we do not definitively resolve these issues here.

*Second*, and in any event, did PDR have a “prior” and “adequate” opportunity to seek judicial review of the order? 5 U. S. C. § 703. The Administrative Procedure Act provides that “agency action is subject to judicial review in civil or criminal proceedings for judicial enforcement” except “to the extent that [a] *prior, adequate, and exclusive opportunity for judicial review is provided by law.*” *Ibid.* (emphasis added). We believe it important to determine whether the Hobbs Act’s exclusive-review provision, which requires cer-



tain challenges to FCC final orders to be brought in a court of appeals “within 60 days after” the entry of the order in question, 28 U. S. C. § 2344, afforded PDR a “prior” and “adequate” opportunity for judicial review of the order. If the answer is “no,” it may be that the Administrative Procedure Act permits PDR to challenge the validity of the order in this enforcement proceeding even if the order is deemed a “legislative” rule rather than an “interpretive” rule. We again say “may” because we do not definitively decide this issue here.

### III

As we have said many times before, we are a court of “review,” not of “first view.” *Cutter v. Wilkinson*, 544 U. S. 709, 718, n. 7 (2005). Because the Court of Appeals has not yet addressed the preliminary issues we have described, we vacate the judgment of the Court of Appeals and remand this case so that the Court of Appeals may consider these preliminary issues, as well as any other related issues that may arise in the course of resolving this case.

*It is so ordered.*

JUSTICE THOMAS, with whom JUSTICE GORSUCH joins, concurring in the judgment.

For the reasons explained by JUSTICE KAVANAUGH, the Court of Appeals misinterpreted the Hobbs Act. I write separately to address a more fundamental problem with that court’s holding: It rests on a mistaken—and possibly unconstitutional—understanding of the relationship between federal statutes and the agency orders interpreting them.

The opinion below assumes that an executive agency’s interpretation of a statute it administers serves as an authoritative gloss on the statutory text unless timely challenged. But for that assumption, the Hobbs Act would have no role to play in this case. This suit is a dispute between private parties, and petitioners did not ask the District Court to “en-



THOMAS, J., concurring in judgment

join, set aside, suspend,” or “determine the validity of” any order of the Federal Communications Commission (FCC). 28 U. S. C. § 2342(1). Indeed, they did not even initiate this suit. They simply argued that the fax at issue here was not an “unsolicited advertisement” and thus did not violate the Telephone Consumer Protection Act of 1991 (TCPA), as respondent contended. See 47 U. S. C. §§ 227(a)(5), (b)(1)(C). The District Court agreed, but the Fourth Circuit reversed, explaining that the FCC had adopted an order interpreting the term “unsolicited advertisement” and that, under the Hobbs Act, only the courts of appeals had jurisdiction to “determine the validity of” such orders. § 2342; see 883 F. 3d 459, 464 (2018). According to the decision below, the Hobbs Act “precluded the district court from even *reaching*” the question of the TCPA’s meaning because “a district court simply cannot reach [that] question without ‘rubbing up against the Hobbs Act’s jurisdictional bar.’” *Ibid.* (emphasis added).

As JUSTICE KAVANAUGH explains, the Fourth Circuit was incorrect. Interpreting a statute does not “determine the validity” of an agency order interpreting or implementing the statute. See *post*, at 19–23 (opinion concurring in judgment).\*

A contrary view would arguably render the Hobbs Act unconstitutional. If the Act truly “precluded the district court from even reaching” the text of the TCPA and instead required courts to treat “FCC interpretations of the TCPA” as authoritative, 883 F. 3d, at 464, then the Act would trench upon Article III’s vesting of the “judicial Power” in the courts. As I have explained elsewhere, “the judicial power,

---

\*Contrary to the majority’s suggestion, *ante*, at 7, it therefore makes no difference whether the FCC order at issue here is a legislative rule or an interpretive rule. In any event, the order is clearly interpretive—it was “‘issued by an agency to advise the public of the agency’s construction of’” the term “unsolicited advertisement.” *Perez v. Mortgage Bankers Assn.*, 575 U. S. 92, 97 (2015).

as originally understood, requires a court to exercise its independent judgment in interpreting and expounding upon the laws.” *Perez v. Mortgage Bankers Assn.*, 575 U.S. 92, 119 (2015) (opinion concurring in judgment). That duty necessarily entails identifying and applying the governing law. Insofar as the Hobbs Act purports to prevent courts from applying the governing statute to a case or controversy within its jurisdiction, the Act conflicts with the “province and duty of the judicial department to say what the law is.” *Marbury v. Madison*, 1 Cranch 137, 177 (1803). And to the extent the Hobbs Act requires courts to “give the ‘force of law’ to agency pronouncements on matters of private conduct” without regard to the text of the governing statute, the Act would be unconstitutional for the additional reason that it would “permit a body other than Congress” to exercise the legislative power, in violation of Article I. *Michigan v. EPA*, 576 U.S. 743, 762 (2015) (THOMAS, J., concurring). At a minimum, our constitutional-avoidance precedents would militate against the Fourth Circuit’s view of the Hobbs Act.

\* \* \*

The decision below rested on the assumption that Congress can constitutionally require federal courts to treat agency orders as controlling law, without regard to the text of the governing statute. A similar assumption underlies our precedents requiring judicial deference to certain agency interpretations. See *Chevron U.S.A. Inc. v. Natural Resources Defense Council, Inc.*, 467 U.S. 837 (1984). This case proves the error of that assumption and emphasizes the need to reconsider it.

JUSTICE KAVANAUGH, with whom JUSTICE THOMAS, JUSTICE ALITO, and JUSTICE GORSUCH join, concurring in the judgment.

May defendants in civil enforcement actions under the Telephone Consumer Protection Act contest the Federal

KAVANAUGH, J., concurring in judgment

Communications Commission’s interpretation of the Act? The Fourth Circuit concluded that the answer is no, meaning that a district court in an enforcement action is required to adhere to the FCC’s interpretation of the Act, no matter how wrong the FCC’s interpretation might be. I disagree with the Fourth Circuit.

The Telephone Consumer Protection Act, or TCPA, prohibits unsolicited commercial faxes. The TCPA creates a private right of action so that the recipients of unsolicited commercial faxes can sue the senders.

Plaintiff Carlton sued PDR in Federal District Court, claiming that PDR sent an unsolicited commercial fax to Carlton in violation of the TCPA. In pursuing its TCPA claim, Carlton relied on the FCC’s interpretation of the TCPA. In 2006, the FCC had opined that the TCPA proscribes unsolicited faxes that promote goods and services, *even at no cost*. In this litigation, PDR argued that the FCC’s “even at no cost” interpretation is wrong (at least if taken literally) and that the District Court therefore should not follow the FCC’s interpretation when interpreting the TCPA.

The Hobbs Act provides for facial, pre-enforcement review of FCC orders. To obtain such review, a party must file a petition for review in a court of appeals within 60 days of the entry of the order, a period that expired back in 2006 for this FCC order. In Carlton’s view, which is supported here by the Federal Government, the Hobbs Act’s provision for facial, pre-enforcement review implicitly bars district courts from reviewing agency interpretations in subsequent enforcement actions. According to Carlton, PDR therefore may not argue in this enforcement action that the FCC’s interpretation of the TCPA is incorrect. The Fourth Circuit agreed with Carlton.

We granted certiorari to decide whether the Hobbs Act required the District Court in this case to accept the FCC’s legal interpretation of the TCPA.

Ruling narrowly, the Court does not answer the question presented. The Court instead vacates the judgment of the Fourth Circuit and remands the case for analysis of two “preliminary issues,” which, depending on how they are resolved, could eliminate the need for an answer in this case to the broader question we granted certiorari to decide. *Ante*, at 8. Under the Court’s holding, if the court on remand concludes that the FCC’s order was an interpretive rule (as opposed to a legislative rule) and not subject to the Hobbs Act in the first place, then PDR will be able to argue to the District Court that the FCC’s interpretation of the TCPA is wrong. Or if the court on remand concludes that the opportunity back in 2006 for pre-enforcement review in a court of appeals was not “adequate” for PDR to obtain judicial review, then PDR likewise will be able to argue to the District Court that the FCC’s interpretation of the TCPA is wrong.

If the court on remand does *not* reach either of those two conclusions, however, then that court will have to tackle the question that we granted certiorari to decide. I agree with the Court that we should vacate the judgment of the Fourth Circuit, but I would decide the question that we granted certiorari to decide. I would conclude that the Hobbs Act does not bar a defendant in an enforcement action from arguing that the agency’s interpretation of the statute is wrong.

My analysis of that question is straightforward: The general rule of administrative law is that in an enforcement action, a defendant may argue that an agency’s interpretation of a statute is wrong, at least unless Congress has expressly precluded the defendant from advancing such an argument. The Hobbs Act does not expressly preclude judicial review of an agency’s statutory interpretation in an enforcement action. Therefore, in this enforcement action, PDR may argue to the District Court that the FCC’s interpretation of the TCPA is wrong. The District Court is not bound by the FCC’s interpretation of the TCPA. Rather, the District Court should interpret the TCPA under usual principles of